

Court No. - 21

Case :- WRIT - C No. - 11320 of 2023

Petitioner :- Vikas Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anurag Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Heard learned counsel for the petitioner, Shri Paras Nath appearing for respondent no. 2 and learned Standing Counsel for the State.

The recovery certificate issued in the past, against the petitioner was subjected to challenge by him in Writ No. 34804 of 2019 *Vikas Yadav v. State of U.P. and Another* and it was disposed of with the following directions :-

"In case any objections are so filed the same shall be considered and decided by a speaking order by the Executive Engineer most expeditiously preferably within a month.

The recovery if any shall be abide by the aforesaid decision.

*The Writ Petition is **disposed of.**"*

In purported compliance of the said direction, an order has been passed by one Magendra Kumar who has described himself as Appellate Authority. The order mentions that he had heard the parties on 06.11.2019 in compliance of the direction of this Court and the provisional assessment would be amended and another final assessment order is being issued. The order does not mention how much amount the petitioner is liable to pay nor deals with any of the objection filed by the petitioner. It is inexplicable as to how the officer had described himself as Appellate Authority while passing the said order. The order is also not a speaking order. It seems that he has no idea at all of the provisions of the U.P.

Electricity Supply Code, 2005. Passing of orders in such casual manner is burdening the docket of this Court.

Let the matter be placed before the Managing Director of the concerned Discom for suitable action in accordance with law.

The Managing Director of the Discom will file his personal affidavit disclosing the steps taken by him to remedy the situation and also state how he proposes to compensate the petitioner for the harassment caused to him in approaching this Court repeatedly on account of the officers of the Discom not following the law.

List as fresh on 24.04.2023.

Shri B.N. Rai, Advocate appearing for the respondent-Electricity Department undertakes to communicate the instant order to the concerned officer for due compliance.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 6.4.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 11320 of 2023

Petitioner :- Vikas Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anurag Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Paras Nath Rai

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Heard Shri Anurag Dubey, learned counsel for the petitioner and Shri Paras Nath Rai, learned counsel for the respondent-Electricity Department.

The personal affidavit of the Managing Director of the concerned Discom has been filed in compliance of our previous order. It is taken on record.

The instant petition has been filed challenging the recovery certificate dated 22.06.2020 issued by respondent no. 2 against the petitioner and for a direction to the respondents not to disconnect the electric supply to the petitioner's premises in respect of connection no. 1911/165190 and also not to withdraw any amount from the account of the petitioner which was attached vide order dated 20.07.2022.

On 06.04.2023, after hearing the parties, we passed the following order:-

"Heard learned counsel for the petitioner, Shri Paras Nath appearing for respondent no. 2 and learned Standing Counsel for the State.

The recovery certificate issued in the past, against the petitioner was subjected to challenge by him in Writ No. 34804 of 2019 Vikas Yadav v. State of U.P. and Another and it was disposed of with the following directions :-

"In case any objections are so filed the same shall be considered and decided by a speaking order by the Executive Engineer most expeditiously preferably within a month.

The recovery if any shall be abide by the aforesaid decision.

*The Writ Petition is **disposed of.***"

In purported compliance of the said direction, an order has been passed by one Magendra Kumar who has described himself as Appellate Authority. The order mentions that he had heard the parties on 06.11.2019 in compliance of the direction of this Court and the provisional assessment would be amended and another final assessment order is being issued. The order does not mention how much amount the petitioner is liable to pay nor deals with any of the objection filed by the petitioner. It is inexplicable as to how the officer had described himself as Appellate Authority while passing the said order. The order is also not a speaking order. It seems that he has no idea at all of the provisions of the U.P. Electricity Supply Code, 2005. Passing of orders in such casual manner is burdening the docket of this Court.

Let the matter be placed before the Managing Director of the concerned Discom for suitable action in accordance with law.

The Managing Director of the Discom will file his personal affidavit disclosing the steps taken by him to remedy the situation and also state how he proposes to compensate the petitioner for the harassment caused to him in approaching this Court repeatedly on account of the officers of the Discom not following the law.

List as fresh on 24.04.2023.

Shri B.N. Rai, Advocate appearing for the respondent-Electricity Department undertakes to communicate the instant order to the concerned officer for due compliance.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery."

The Managing Director of the concerned Discom who has filed his personal affidavit admits that there was error on part of the Officer passing the order in describing himself as "Appellate Authority". The inquiry report annexed with the affidavit also mentions that the concerned Officer has been issued warning to be careful in future vide letter dated 21.04.2023. The said affidavit, however, does not disclose what step was taken by him to get the error corrected rather the prayer made in the affidavit is to dismiss the writ petition.

It is not disputed before us that in previous writ petition, the specific direction was to decide the objection of the petitioner by a speaking order. The impugned order apart from the fact that the authority passing the said order has described itself as "Appellate Authority" also does not deal with any of the objections of the petitioner although it records that the parties were heard. This is in teeth of the directions issued by the previous order. In the absence of any reasons in the impugned order, it is rendered illegal.

Consequently, we quash the impugned order and remit the matter back to the Assessing Officer to decide the objections in terms of the direction dated 06.04.2023 in the previous writ petition.

As petitioner has been subjected to unnecessary harassment on account of passing of an illegal order, we allow the instant petition with a cost of Rs. 20,000/- which would be adjusted by the respondents against the future bills in respect of electricity connection no. 1911/165190. We leave it open to the respondents to recover the said amount from the erring officer.

The petition stands **allowed** accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.4.2023

Rama Kant